

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500801	GAUSE VS SARDONI	MOTION TO COMPEL FURTHER RESPONSES OF DEFENDANT THOMAS W. SARDONI TO FORM INTERROGATORIES BY JOSH GAUSE

Tentative Ruling: Hearing continued to 8/25/26.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600408	OLIVEROS VS WORKFORCE MANAGEMENT GROUP INCORPORATED	MOTION FOR LEAVE TO AMEND COMPLAINT ON COMPLAINT FOR WRONGFUL TERMINATION (OVER \$35,000) OF ROKSANA OLIVEROS BY ROKSANA OLIVEROS

Tentative Ruling: Plaintiff Roksana Oliveros's ("Plaintiff") Motion for Leave to File a First Amended Complaint ("FAC") is granted. Plaintiff must separately file its FAC within 20 days of this ruling.

Under Code of Civil Procedure §§ 473(a) and 576, trial courts have broad discretion to allow a party to amend any pleading at any stage of the proceeding "in furtherance of justice". C.C.P. §473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

CCP §472 permits the amendment of any pleading once as a matter of course before the answer or demurrer is filed, or after demurrer and before trial. (*Gross v. Department of Transportation* (1986) 180 Cal.App.3d 1102, 1105.) Otherwise, amendment of any pleading requires prior order of court. CCP §473 provides that following a noticed motion, the court may allow an amendment to any pleading. CCP §473 and §576, and case law establish a "policy of great liberality in permitting amendments at any stage of the proceeding." (*Rocky Mountain Export Co. v. Colquitt* (1960) 179 Cal.App.2d 204, 207.) This policy is so strong that denial of a motion for leave to amend is rarely justified. (*Morgan v. Sup. Ct.* (1959) 172 Cal.App.2d 527, 530.) This policy is intended to allow cases to be decided on their substantial merits. Generally, it is an abuse of discretion to deny leave to amend if there is any reasonable possibility that a defect in the complaint can be cured.

The Court finds that Plaintiff has satisfied the procedural requirements of California Rules of Court, Rule 3.1324. Plaintiff's counsel submitted a supporting declaration specifying the effect of the amendments, why they are necessary, when the new facts were discovered, and why the request was not made earlier.